



Procedure No: EXP202404399 (PS/00276/2024)

RESOLUTION OF THE SANCTIONING PROCEDURE

From the actions taken by the Spanish Agency for Data Protection and based on the following,

BACKGROUND

FIRST: On 13/02/24, Ms. A.A.A. (the complainant) submitted a complaint to the Spanish Agency for Data Protection.

The complaint is directed against the entity CALLBELL S.A.S. with foreign identification document (France): ***DOCUMENTO.1 (the respondent), for the alleged violation of Law 34/2002, of July 11, on Information Society Services and Electronic Commerce (LSSI).

The facts stated by the complainant are as follows:

“Since a previous interaction in which I sought to resolve a technical incident through their support service, I have been receiving continuous communications despite having formally requested the cessation of the same. It is important to note that, although my request to unsubscribe from their system was confirmed, the communications persist.”

Along with the complaint, screenshots of the WhatsApp exchanges between the complainant and the respondent are attached:

- (A.A.A.): I wanted to know if there was any news about the ticket or any way to read the contacts that arrive at Callbell.
- (CALLBELL): I'm on it (...), I mentioned it to the developers in charge a while ago. I will keep a close eye on it today. (...), the devs tell me they don't see any errors. Look, they told me to pass you these instructions...
- (CALLBELL): Hello, how are you? This is B.B.B., just stopping by to remind you that you have an outstanding invoice for this period, I'm leaving a link...
- (A.A.A.): Hello, I am not from billing. Please do not send me communications.
- (CALLBELL): Thank you for letting me know, who would be in charge of the area to schedule it as Finance?
- (A.A.A.): I do not have the information. Please delete my data.
- (CALLBELL): Hello, at Callbell we have worked a lot in recent months to streamline the search system. Today we bring you a new improved search bar that allows you to find what you need in an instant. Now you can enjoy a faster, more efficient search with more search parameters.

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On November 21:

- (CALLBELL): Now you can connect multiple WhatsApp numbers, Facebook pages, or Instagram profiles to a single account in Callbell. This means you can manage all your conversations in one place...
- (A.A.A.): Hello, I have already said not to write to me anymore, and I never signed up via WhatsApp.
- (CALLBELL): Hello A.A.A.! How are you? We sent a mass informational message and removed you from the database for the Billing issue in the company you worked for before.

On December 12:

- (CALLBELL): Discover the Callbell Bot Builder module: Our product has evolved and we are about to launch a new bot module...

On December 14:

- (CALLBELL): We will be live at 4 PM ARG / 2 PM COL / 1 PM MEX and we want to invite you to be part of this event...

On December 15:

- (CALLBELL): If you require personalized advice to build your first bot or discover the new features of Callbell...

On December 18:

- (CALLBELL): If you require personalized advice to build your first bot or discover the new features of Callbell...

On February 12:

- (CALLBELL): Learn how to create your first WhatsApp Bot at our live event...

SECOND: On 19/03/24, in accordance with the provisions of Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (LOPDGDD), this Agency forwarded the complaint to the respondent for analysis and to report back within one month on what was stated in the complaint.

The transfer was sent to the address, ***DIRECCIÓN.1, which appears as "Company Address" in the "Privacy Policy" on their website: <https://www.callbell.eu/es/politica-de-privacidad/> and was carried out in accordance with the rules established in Law 39/2015, of October 1, on Administrative Procedure.

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Common of the Public Administrations (LPACAP) by international postal notification being returned to the sender with the annotation "recipient unknown."

THIRD: On 27/05/24, the Director of the Spanish Agency for Data Protection issued an agreement admitting the processing of the complaint filed, in accordance with Article 65 of the LOPDGDD.

FOURTH: On 08/07/24, the Director of the Spanish Agency for Data Protection decided to initiate sanctioning proceedings against the complained party in accordance with the provisions of Articles 63 and 64 of the LPACAP, for the alleged violation of Article 21 of the LSSI, classified as minor in Article 38.4.d) of that regulation.

In the opening agreement, it was determined that the sanction that could correspond, taking into account the existing evidence at that time and without prejudice to what resulted from the instruction, would amount to a total of 5,000 (five thousand euros).

The notification of the initiation of the file was carried out in accordance with the rules established in the LPACAP. According to a certificate from the Postal Service, the initiation document sent to the address, ***ADDRESS.1, was delivered on 06/08/24 by international certified mail, as recorded in the file.

FIFTH: Once the aforementioned initiation agreement was notified in accordance with the rules established in the LPACAP and the deadline granted for the submission of allegations had elapsed, it has been confirmed that no allegations have been received regarding the initiation of the file at this Agency.

Article 64.2.f) of the LPACAP - a provision of which the complained party was informed in the opening agreement of the procedure - establishes that if no allegations are made within the stipulated period regarding the content of the initiation agreement, when it contains a precise pronouncement regarding the responsibility attributed, it may be considered a proposal for resolution. In this case, the initiation agreement of the sanctioning file determined the facts on which the accusation was based, the infringement of the LSSI attributed to the complained party, and the sanction that could be imposed. Therefore, considering that the complained party has not submitted allegations to the initiation agreement of the file and in accordance with the provisions of Article 64.2.f) of the LPACAP, the aforementioned initiation agreement is considered in this case a proposal for resolution.

In view of all that has been acted upon, the Spanish Agency for Data Protection considers the following proven facts in the present procedure,

PROVEN FACTS

First: It is confirmed that after a prior interaction between the complainant and the complained party, the complainant requested the cessation of communications, as evidenced in the exchanged

WhatsApp messages:

- (A.A.A.): I wanted to know if there was any news about the ticket or any way to read the contacts that arrive at Callbell.

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- (CALLBELL): I'm on it (...), I mentioned it to the developers in charge a while ago. I will keep a close eye on it today. (...), the devs tell me they don't see any error. Look, they told me to pass you these instructions...

- (CALLBELL): Hello, how are you? This is B.B.B., I'm reaching out to remind you that you have an outstanding invoice for this period, I'm leaving a link...

- (A.A.A.): Hello, I am not from billing. Please do not send me communications.

- (CALLBELL): Thank you for letting me know, who would be in charge of the area to schedule it as Finance?

- (A.A.A.): I do not have the information. Please delete my data.

Second: It is confirmed that after the request made by the complained party to stop receiving communications via WhatsApp, the communications persisted, as evidenced in the exchanged WhatsApp messages:

- (CALLBELL): Hello, at Callbell we have worked hard in recent months to streamline the search system. Today we bring you a new improved search bar that allows you to find what you need in an instant. Now you can enjoy a faster, more efficient search with more search parameters.

On November 21:

- (CALLBELL): Now you can connect multiple WhatsApp numbers, Facebook pages, or Instagram profiles to a single account in Callbell. This means you can manage all your conversations in one place...

- (A.A.A.): Hello, I have already said not to write to me anymore, and I never signed up for WhatsApp.

- (CALLBELL): Hello A.A.A.! How are you? We sent a mass informational message and removed you from the database for the Billing issue in the company you worked at before.

On December 12:

- (CALLBELL): Discover the Callbell Bot Builder module: Our product has evolved and we are about to launch a new bot module...

On December 14:

- (CALLBELL): We will be live at 4 PM ARG/ 2 PM COL/ 1 PM MEX and we want to invite you to be part of this event...

On December 15:

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(CALLBELL): If you require personalized advice to build your first bot or discover the new features of Callbell...

Date: December 18:

-

(CALLBELL): If you require personalized advice to build your first bot or discover the new features of Callbell...

Date: February 12:

-

(CALLBELL): Learn how to create your first WhatsApp Bot at our live event...

LEGAL GROUNDS

I.

Jurisdiction.

The Director of the Spanish Agency for Data Protection is competent to initiate and resolve this Sanctioning Procedure, in accordance with the provisions of Article 43.1, second paragraph, of the LSSI and as established in Articles 47, 48.1, 64.2, and 68.1 of the LOPDGDD.

The fourth additional provision of the LOPDGDD establishes, regarding the "Procedure in relation to the competencies attributed to the Spanish Agency for Data Protection by other laws," that: "The provisions in Title VIII and its implementing regulations shall apply to the procedures that the Spanish Agency for Data Protection must process in the exercise of the competencies attributed to it by other laws."

II.

Summary of the events that occurred:

According to the complainant, and as stated in the documentation submitted, since contacting the respondent to resolve a technical incident through its support service, they have been receiving commercial communications via WhatsApp despite not having requested or authorized them beforehand.

III.

Classification of the infringement committed.

The fact that the respondent sends advertising messages to the complainant without the latter having previously requested or expressly authorized them constitutes a violation of the provisions established in Article 21 of the LSSI, which states the following:

"1. The sending of advertising or promotional communications by email or other equivalent electronic communication means that have not been previously requested or expressly authorized by the recipients is prohibited.

2. The provisions of the previous paragraph shall not apply when there is a prior contractual relationship, provided that the provider has lawfully obtained the contact details of the recipient and uses them to send commercial communications regarding products or services of its own company that are similar to those initially contracted with the customer.

In any case, the provider must offer the recipient the possibility to oppose the processing of their data for promotional purposes through a simple and free procedure, both at the time of data collection and in each of the commercial communications sent to them.

When communications have been sent by email, this means must necessarily consist of the inclusion of an email address or another valid electronic address where this right can be exercised, and the sending of communications that do not include such an address is prohibited."

IV.

Graduation of the sanction

The aforementioned infringement of Article 21 of the LSSI is classified as minor in Article 38.4.d) of that regulation, which qualifies as such, "The sending of commercial communications by email or other equivalent electronic communication means when such communications do not meet the requirements established in Article 21 and do not constitute a serious infringement."

According to the provisions of Article 39.1.c) of the LSSI, minor infringements may be sanctioned with a fine of up to €30,000.

For its part, Article 40 of the LSSI establishes the criteria for the graduation of the amount of sanctions: "The amount of the fines imposed shall be graduated according to the following criteria:

- a) The existence of intent.
- b) The period of time during which the infringement has been committed.
- c) The recurrence of committing infringements of the same nature, when this has been declared by a firm resolution.
- d) The nature and amount of the damages caused.
- e) The benefits obtained from the infringement.

- f) The volume of billing affected by the committed infringement.
- g) Adherence to a code of conduct or an applicable advertising self-regulation system regarding the committed infringement, which complies with the provisions of Article 18 or in the eighth final provision and has been favorably reported by the competent body or bodies.

It is considered appropriate to graduate the sanction to be imposed according to the following aggravating criterion, which establishes Article 40 of the LSSI:

- The existence of intent (paragraph a), since, despite the complainant requesting that they cease sending further communications via WhatsApp, the

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The complainant continued to receive commercial communications through this medium on five more occasions.

In accordance with these criteria, it is deemed appropriate to impose a fine of 5,000 euros (five thousand euros) for the infringement of Article 21.1 of the LSSI, for sending advertising messages to the complainant, even after she had requested that no further commercial communications be sent to her.

In accordance with the applicable legislation and having assessed the criteria for the graduation of sanctions whose existence has been established, the Director of the Spanish Agency for Data Protection

RESOLVES:

FIRST: TO IMPOSE on the entity CALLBELL S.A.S. with foreign identification document (France):

***DOCUMENTO.1, for the infringement of Article 21 of the LSSI, classified as minor under Article 38.4.d) of the aforementioned regulation, a fine of 5,000 euros (five thousand euros).

SECOND: TO NOTIFY this resolution to the entity CALLBELL S.A.S.

THIRD: To warn the sanctioned party that the imposed fine must be paid once this resolution becomes enforceable, in accordance with the provisions of Article 98.1.b) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, within the voluntary payment period indicated in Article 68 of the General Collection Regulation, approved by Royal Decree 939/2005, of July 29, in relation to Article 62 of Law 58/2003, of December 17, by depositing it into the restricted account No. ES00 0000 0000 0000 0000 0000, opened in the name of the Spanish Agency for Data Protection at the banking entity CAIXABANK, S.A. or, failing that, the collection will proceed in the executive period.

Upon receipt of the notification and once enforceable, if the date of enforceability falls between the 1st and the 15th of each month, inclusive, the deadline for voluntary payment will be until the 20th of the following month or the next business day, and if it falls between the 16th and the last day of each month, inclusive, the payment deadline will be until the 5th of the second following month or the next business day.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure (Article 48.6 of the LOPDGDD), and in accordance with the provisions of Articles 112 and 123 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, the interested parties may optionally file a motion for reconsideration with the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned legal text.

Finally, it is noted that in accordance with the provisions of Article 90.3 a) of Law 39/2015, of October

1, on the Common Administrative Procedure of Public Administrations, the firm resolution in the administrative procedure may be provisionally suspended if the interested party expresses their intention to file a contentious-administrative appeal. If this is the case, the interested party must formally communicate this fact by writing to the Spanish Agency for Data Protection, submitting it through the Electronic Registry of the Agency [<https://sedeagpd.gob.es/sede-electronicaweb/>], or through any of the other registries provided for in Article 16.4 of the aforementioned Law 39/2015, of October 1.

They must also provide the Agency with documentation that proves the effective filing of the contentious-administrative appeal. If the Agency is not aware of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, it will consider the provisional suspension to be concluded.

Mar España Martí

Director of the Spanish Agency for Data Protection.

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